

		Movant’s counsel failed to file proof of service of the motion or reply. (Cal. Rule of Court 3.1300(c).) It appears Plaintiff was served with the motion since an opposition was timely filed. However, Defendant must promptly file proof of service of both the motion and reply. In future, Defendant’s counsel must accompany all filings with proof of service on opposing counsel.
12.	SENTINEL STRATEGIC SERVICES, LLC VS. SOLERA AT APPLE VALLEY COMMUNITY ASSOCIATION, INC. 2024-01399350	MOTION FOR ATTORNEY FEES The Motion for Attorney Fees by Defendant Solera at Apple Valley Community Association is partially GRANTED in the amount of \$14,403.47. The Court grants the motion but reduces the total requested fees/costs of \$19,204.62 by 25% based on the fact that Defendant only prevailed as to six out of Plaintiff’s eight causes of action. <u>Legal Standard:</u> Code of Civil Procedure section 425.16(c)(1) provides, “Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” However, a party who prevails on an anti-SLAPP motion which is only an “illusory” or “minimal and insignificant” victory with no “practical effect” is not entitled to recover their attorney fees. (See <i>Lin v. City of Pleasanton</i> (2009) 176 Cal.App.4th 408, 425–426; <i>Moran v. Endres</i> (2006) 135 Cal.App.4th 952, 954–955.) <u>Merits:</u> Defendant seeks to recover fees of \$19,204.62 incurred in regard to its anti-SLAPP motion to strike Plaintiff’s complaint, which was granted in part on 12/10/24. The Court of Appeal upheld the partial grant of the anti-SLAPP motion and issued a remittitur on 4/15/26. The Court partially granted moving Defendant’s anti-SLAPP motion as to the 3rd-8th causes of action and denied the motion as to the 1st-2nd causes of action which are based in contract. Defendant obtained a substantial practical benefit from the motion by eliminating Plaintiff’s tort claims. Plaintiff contends the requested fees include the following non-compensable items: “(1) pre-litigation work performed before Plaintiff SENTINEL STRATEGIC SERVICES, LLC (“Plaintiff”) filed its Complaint on May 1, 2024 (ROA, No. 2), which could not have been incurred in connection with the Anti-SLAPP Motion; (2)

litigation activities unrelated to the Anti-SLAPP Motion; (3) excessive, duplicative, and unnecessary attorney time, including multiple attorneys performing overlapping work and conferring unnecessarily with one another; (4) noncompensable clerical and administrative tasks, including filing, service, calendaring, document organization, and file maintenance; (5) inflated hourly rates that exceed the rates represented in Defendant's supporting declaration; and (6) inadequately documented and nonrecoverable litigation expenses, including purported legal research costs and document retrieval fees that are not authorized by statute." (Opp. at p. 2.)

Defendant maintains its counsel billed a reasonable amount of time for the SLAPP motion plus the present motion – 54.7 hours of attorney time plus 9.1 hours of paralegal time. The SLAPP motion included approximately 17 pages of argument and included a six-page declaration with 6 exhibits. Defendant also filed a nine-page reply. The Court finds this was a reasonable amount of time, adequately supported by detailed billing records.

Regarding pre-complaint work, Defendant explains this work was necessary to attempt to dissuade Plaintiff from filing its SLAPP suit.

In a supplemental declaration filed on 7/28/26, Defendant's counsel explains that their hourly rates increased effective 4/1/26 but the increased rates are not reflected in the motion, explaining the apparent discrepancy in the moving papers. The Court finds the billing rates of between \$310-365/hour for attorneys and \$170 for paralegals are reasonable. Defendant does not appear to have included any billing for legal secretaries.

Defendant has shown the costs of \$805.12 were reasonably incurred for legal research expenses and electronic service and filing.

However, the motion was only partially successful – it was granted as to six of Plaintiff's eight causes of action, or 75% of the claims addressed in the motion.

"[A] partially prevailing party is not necessarily entitled to all incurred fees even where the work on the successful and unsuccessful claims was overlapping. [Citations] Instead, the court must consider the significance of the overall relief obtained by the prevailing party in relation to the hours reasonably expended on the litigation and whether the expenditure of counsel's time was reasonable in relation to the success achieved. [Citation]" (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 344.)

Here, Defendant obtained a significant dismissal of six non-contract claims which substantially reduced the scope of its defense and potential liability, but substantive contract-based claims remain. Therefore, the motion is granted in the amount of \$14,403.47 based

		on a 25% reduction of the total fees and costs since Defendant prevailed as to 75% of the causes of action addressed in the motion.
13.	GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC 2023-01370855	1. MOTION FOR TERMINATING SANCTIONS 2. MOTION TO BE RELEVED AS COUNSEL OF RECORD NO TENTATIVE RULING
14.	SOLIMAN VS. LAWYERS TITLE COMPANY	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION Plaintiff/Cross-Defendant Salaheldin S. Soliman’s (“Soliman”) motion for: (1) summary judgment of Defendant/Cross-Complainant PFN Lending Group, Inc.’s (“PFN”) Cross-Complaint or, in the alternative, summary adjudication of PFN’s two causes of action therein; and (2) summary adjudication of Soliman’s Second Cause of Action for Declaratory Relief alleged in the First Amended Complaint (“FAC”) is DENIED. Soliman’s Objections to Declaration of March Shenkman are SUSTAINED as to Objection Nos. 2 and 4 and OVERRULED as to the remaining. <u>Summary Judgment/Adjudication as to PFN’s Cross-Complaint:</u> The Cross-Complaint alleges Soliman is the owner of the real property located at 2712 North Bently Street, Orange, CA 92867 (“Property”). (Cross-Complaint, ¶ 6.) In 2023, PFN loaned Soliman \$519,000 evidenced by a balloon note executed by Soliman in favor of PFN (the “Note”). (Cross-Complaint, ¶¶7-8.) The Note was secured by a 2023 Deed of Trust executed by Soliman and recorded against the Property. (Cross-Complaint, ¶9.) The 2023 Deed of Trust recorded in the Official Records of Orange County on November 3, 2023, as Instrument No. 2023000269729 (the “2023 DOT”) identifies Soliman as borrower and PFN as Lender and beneficiary. (Soliman Separate Statement of Undisputed Material Facts (“UMF”) 4.) Prior to the 2023 DOT, a Deed of Trust executed by the Property’s former owners, Kevin and Michelle Kane, had been recorded against the Property in the Official Records of Orange County on July 17, 2006, as Instrument No. 2006000473983 (“2006 DOT”). (Soliman RJN, Ex. D.) On February 17, 2024, a Notice of Default based on a default under the 2006 DOT was recorded against the Property. (Soliman RJN, Ex. A, ¶11). On July 10, 2024, PFN’s counsel advised Soliman’s counsel that the Section 4 covenant in the 2023 DOT required Soliman to discharge the senior lien—the 2006 DOT—and that failure to do so was a default; Soliman refused to discharge the senior lien. (Soliman RJN, Ex. A, ¶12).